

**BEFORE THE BOARDS OF PSYCHOLOGIST AND LICENSED PROFESSIONAL
COUNSELOR EXAMINERS**

STATE OF COLORADO

Case Nos. 2009-001074 and 2009-002069

STIPULATION AND FINAL AGENCY ORDER

**IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSES
TO PRACTICE PSYCHOLOGY AND LICENSED PROFESSIONAL COUNSELING IN
THE STATE OF COLORADO OF DOUGLAS WEISS, Ph.D., LICENSE NOS. PSY 3199,
LPC 2615**

Respondent.

**IT IS HEREBY STIPULATED by and between the Colorado State Boards of Psychologist
and Licensed Professional Examiners ("Boards") and Douglas Weiss, Ph.D., ("Respondent") as
follows:**

JURISDICTION

- 1. The Boards have jurisdiction over Respondent, Respondent's licenses to practice psychology and professional counseling, and the subject matter of this Stipulation and Final Agency Order ("Order").**
- 2. Respondent was licensed to practice professional counseling in the state of Colorado on August 31, 2000, being issued license number LPC 2615, and subsequently licensed to practice psychology in the state of Colorado on May 19, 2008, being issued license number PSY 3199.**
- 3. This Order is a full and final resolution of case numbers 2009-001074 and 2009-002069. This Order does not resolve any other cases, complaints or matters, known or unknown to the Boards or Respondent, as of the effective date of this Order.**

STATUTORY AUTHORITY

- 4. Section 12-43-222(1) (g), C.R.S., permits the Boards to take disciplinary action against a licensee for violating the laws governing the practice of psychology and professional counseling.**

12-43-222. Prohibited activities – related provisions. (1) A person licensed, registered, certified, or regulated under part 3, 4, 5, 6, 7, or 8 of this article is in violation of this article if such person:

(g) Has acted or failed to act in a manner that does not meet the generally accepted standards of the professional discipline under which such person practices. A certified copy of a malpractice judgment of a court of competent jurisdiction shall be conclusive evidence of such act or omission, but evidence of such act or omission shall not be limited to a malpractice judgment;

FINDINGS OF FACT

5. The Boards find and Respondent admits that:

a. In or about September 2008, Respondent provided treatment to a married couple in the form of an intense three-day marriage counseling retreat (“Intensive”).

b. During the course of the Intensive, rather than assessing the situation, de-escalating the anger expressed by the couple toward each other, providing a positive therapeutic approach to the marital discord, working on the marriage, and focusing on implementing therapeutic methods for the couple to employ when discussing their relationship, Respondent created more adversity and alienation between the couple and elevated the marital discord by becoming an executioner of the marriage and rushing both of them into discussions about ending the marriage, distribution of marital assets, divorce (both individually and as a couple), and moving on with their lives; writing anger letters; and writing “good-bye” letters to their dreams, their marriage, and each other.

c. Respondent failed to implement appropriate therapeutic interventions such as mediation, conflict resolution, conflict clarification, goal setting, and/or assistance in processing the emotional reactions to the situation.

6. By virtue of the facts admitted in paragraph 5 above, Respondent admits and the Boards find that Respondent violated §12-43-222(1), (g), C.R.S.

7. By virtue of the admissions in paragraphs 5 and 6 above, Respondent is subject to the following disciplinary sanction that the Boards believe is necessary to protect the public health, safety, and welfare.

DISPOSITION

8. **ADMONISHMENT.** On the basis of the findings set forth in paragraph 5, the Boards admonishes Respondent for violations of § 12-43-222(1) (g), C.R.S. This Stipulation and Order is effective as a Letter of Admonition, as set forth in § 12-43-224(3) (d), C.R.S.

9. Respondent shall comply fully with the Colorado Mental Health Practice Act, all Boards rules and regulations, and any other statutes, laws, ordinances, regulations, and rules related to psychologists/ professional counselors / psychotherapists and the practice of psychology / professional counseling / psychotherapy.

ADVISEMENTS AND WAIVERS

10. **ADVISEMENT.** Respondent acknowledges that he has had the opportunity to seek legal counsel with regard to this proceeding. Respondent enters into this Order freely and voluntarily, absent any duress or coercion. Respondent fully understands the legal consequences of this Order and the right to a formal hearing on all matters herein, and agrees that no term or condition contained herein is unconscionable.

11. **WAIVERS.** Respondent is fully aware of and understands that he has the right to a formal disciplinary hearing pursuant to §§ 12-43-224 and 24-4-104 and 105, C.R.S., with respect to the facts and violations admitted herein. However, Respondent knowingly and voluntarily waives those rights, including, without limitation, the right to present a defense and cross-examine witnesses who would testify on behalf of the Boards. Respondent further waives the right to appeal the Order entered herein, as permitted by §24-4-106, C.R.S.

12. **FINAL AGENCY ORDER.** The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board Order for purposes of §12-43-222, C.R.S., and shall have the same force and effect as an order entered into after a formal disciplinary proceeding pursuant to §§ 12-43-224 and 24-4-104 and 105, C.R.S.

13. **INTEGRATION AND SEVERABILITY.** This Stipulation and Order constitutes the entire agreement between the Respondent and the Boards. There are no other promises expressed or implied. In the event that a court of competent jurisdiction deems a provision unenforceable, such provision shall be severed, and the remainder of this Stipulation and Order shall be given full force and effect.

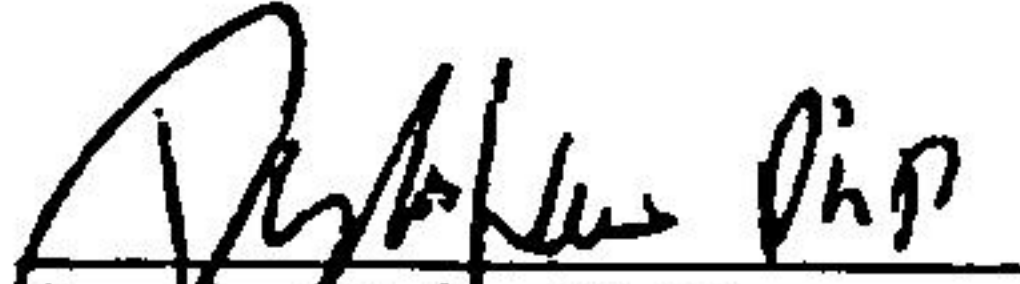
15. **EFFECTIVE DATE.** Respondent acknowledges that this Order shall be fully executed and shall become a Final Agency Order of the Boards once signed by the Program Director of the Boards.

16. **PUBLIC RECORD.** This Stipulation and Order is a public record in custody of the Boards at all times and shall be reported as required by law.

17. The parties to this Order agree that a facsimile signature may substitute and have the same legal effect as the original signature.

18. This Order contains a total of 4 pages, including all signature pages.

ACCEPTED AND AGREED TO BY:


Douglas Weiss, Ph.D.,
License # PSY 3199

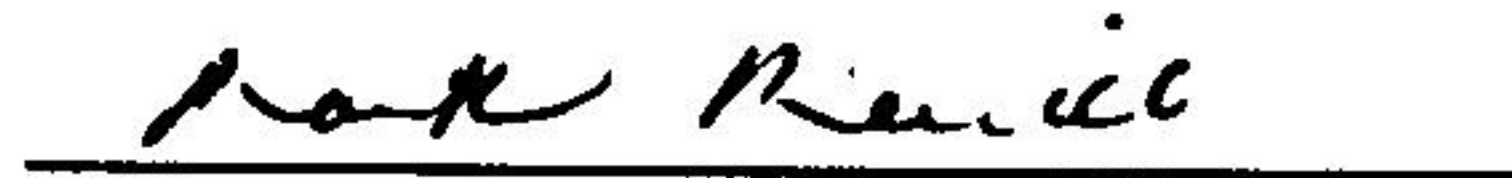
Dated: 11/23/10

FINAL AGENCY ORDER

WHEREFORE, this Order with regard to case numbers 2009-001074 and 2009-002069 is hereby accepted, approved, and hereby made an Order of the Boards.

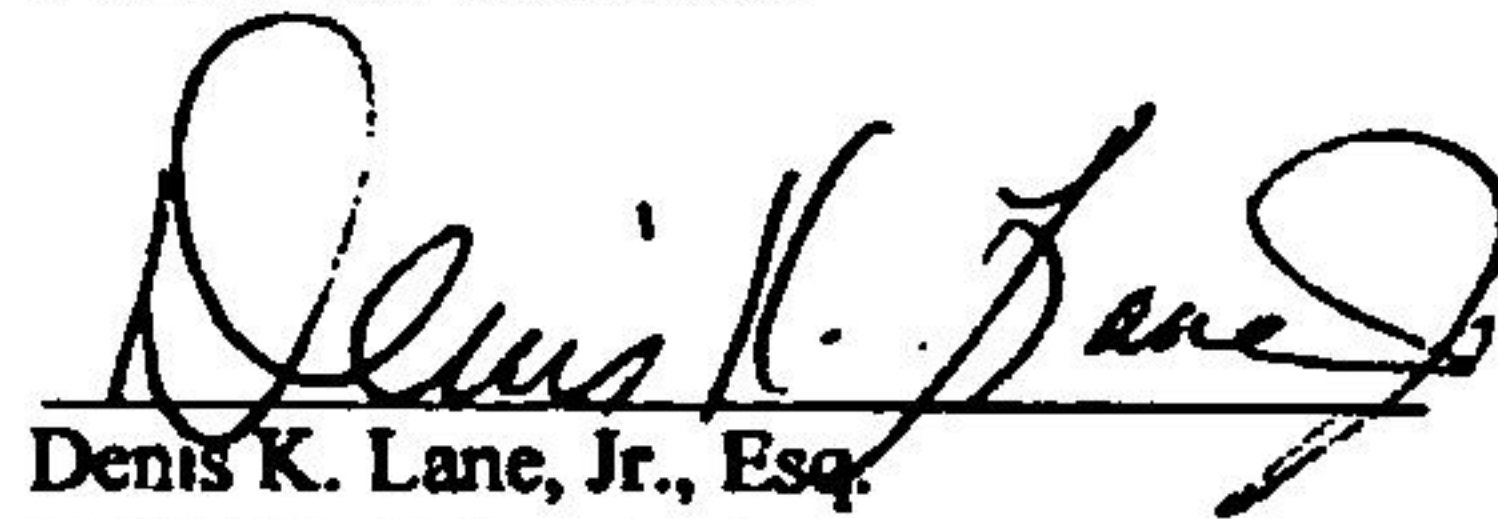
EFFECTIVE this 1st day of December, 2010.

**COLORADO STATE BOARDS OF PSYCHOLOGIST AND LICENSED
PROFESSIONAL COUNSELOR EXAMINERS**

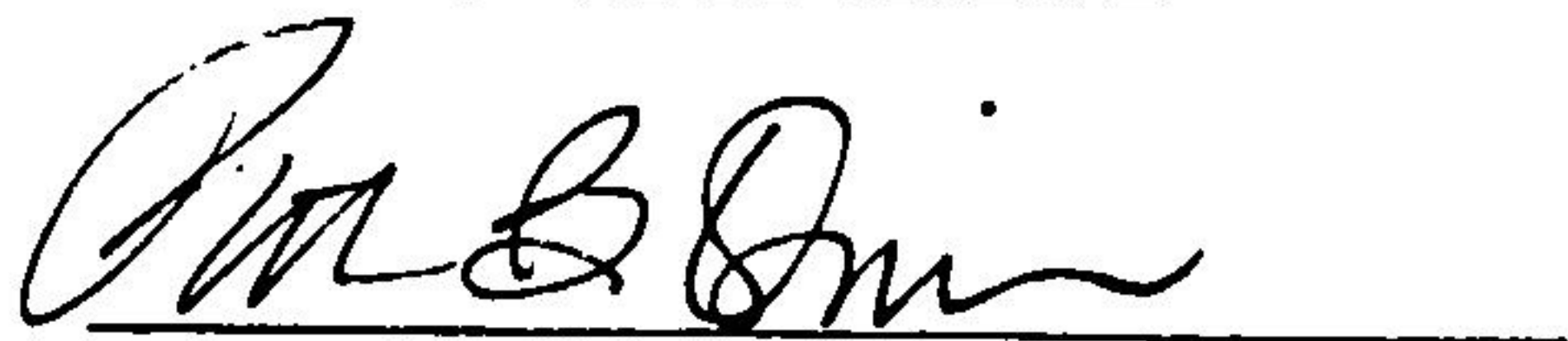

Mark Merrill
Acting Program Director for the Boards

APPROVED AS TO FORM

FOR RESPONDENT


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